

From : info@ethichawks.co.za

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Cc : <jason.whyte@deneys.co.za>,<frances.barker@deneys.co.za>,<ir@afrocentrichealth.com>,<lebohang.mpumlwana@afrocentrichealth.com>

Subject : LABOUR COURT CASE NO: 2026-083299 & CONCURRENT 2026-077546 – FILING OF UNILATERAL PRE-TRIAL MINUTE AND REQUEST TO PLACE BEFORE A JUDGE

Date : 11 Jun 2026 10:47

Dear Registrar Ismail,

1. Filing of Unilateral Pre-Trial Minute

Please find attached the Plaintiff's Unilateral Pre-Trial Minute, filed today, 11 June 2026, in terms of Rule 22 of the Labour Court Rules, 2024. The pleading has closed and the Respondents have failed and refused to cooperate in convening a joint pre-trial conference within the statutory timeframe, despite multiple attempts by the self-represented Plaintiff.

2. Request to place matter before a Judge

I respectfully request that you place this Minute and the complete case file before a presiding Judge at the earliest possible opportunity, for the following purposes:

- To note the Respondents' documented non-cooperation and procedural obstruction;
- To obtain directions regarding the preliminary challenge to the Respondents' defective Statement of Response (signed on behalf of a non-party entity without a verifying affidavit);
- To enrol the matter for trial as soon as practicable.

3. CC to Respondents' legal representatives – settlement position

I have copied this email to Deneys Reitz Inc. and the Respondents' in-house representatives. For the avoidance of doubt:

- The Plaintiff remains amenable to an amicable, lawful disposition of all pending matters on a without prejudice basis.
- However, the without prejudice proposal sent by Deneys on 4 June 2026 has not been meaningfully pursued. Despite my immediate reply on the same day confirming willingness to engage via email, I have received no substantive response, no proposed meeting date, no draft settlement framework, and no further correspondence whatsoever in the seven days since.
- I cannot allow the statutory pre-trial process to be indefinitely suspended by unfulfilled settlement overtures. The filing of this Unilateral Pre-Trial Minute proceeds without prejudice to my continuing openness to genuine engagement.

4. Conclusion

Please confirm receipt of this email and the attached Minute. Should any further information be required from the Plaintiff to facilitate placing this matter before a Judge, kindly advise me.

Yours faithfully,

Sr Wilbur William Matthee
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Ethical Pledge Statement: While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules